

BUTTS v FCA US, LLC, et al

25CV47877

DEFENDANT'S MOTION TO COMPEL INITIAL DISCLOSURES

This matter involves claims around a car warranty brought by Alan D. Butts ("Plaintiff") against FCA US, LLC ("Defendant.") Now before the Court is a motion to compel initial disclosures brought by Defendant.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion must include the following language:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED**, without prejudice to refile.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

FARIDI v TDS TRUSTEE SERVICES

25CV48053

PLAINTIFF'S AMENDED MOTION FOR WRIT OF POSSESSION

Plaintiff Tariq Jamil Faridi ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendant Steve Carlson ("Carlson".) Now before the Court is Plaintiff's motion for writ of possession.

Plaintiff filed his complaint against Carlson on May 19, 2025 and a first amended complaint on July 3, 2025. On July 11, 2025, upon Plaintiff's motion, all causes of action against Carlson were dismissed with prejudice.

At the case management conference on September 24, 2025, Plaintiff was directed to file proof of service of the FAC.

On November 21, 2025, Plaintiff filed a self-titled "Motion to Reinstate Steve Carlson as Defendant". The Court denied the motion, without prejudice, due to Plaintiff's failure to comply with Local Rule 3.3.7.

Plaintiff never refiled any type of motion seeking to reinstate Carlson as a defendant. Additionally, there is no evidence that Plaintiff served the FAC and summons on Carlson. Therefore, Carlson is not currently a party to this action and therefore no relief can be sought against him.

Accordingly, the motion for writ of possession is not properly before the Court and is therefore **DENIED, WITH PREJUDICE**.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.